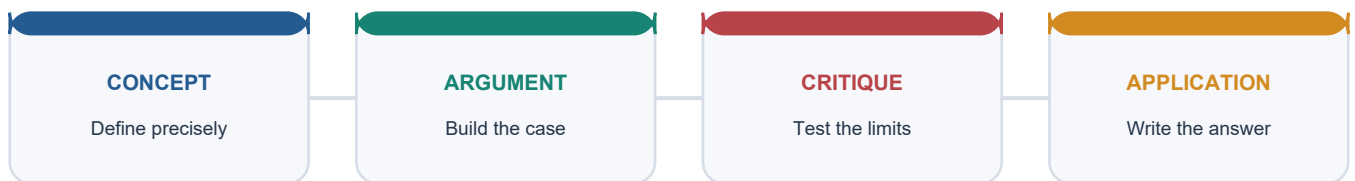


COMPLETE LEARNING SESSION

Federal System - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Federal System - Solved Practice Workbook

Constitution, official judgments, audited UPSC paper routes and current federal sources checked through 7 September 2026. Exactly 32 original MCQs precede ten audited direct/shared PYQs and six original Mains solutions. Unavailable historical official objective keys are explicitly withheld.

Exactly **32 original MCQs** follow. Q1-Q24 diagnose the full syllabus spine; Q25-Q32 remediate close distinctions. Correct options follow ABCD eight times. Every option has a question-specific explanation and every question ends with a unique trap.

BASIC MCQS / REMEDIATION

Q1. Which proposition most accurately identifies the federal principle?

A. The Constitution protects authority of general and regional governments in assigned spheres. B. Every regional authority must possess a unilateral right to secede. C. A national government is federal only when it is institutionally weak. D. A federation necessarily maintains two completely separate court systems.

Answer: A.

- **A:** Correct. Constitutional allocation gives both levels direct authority and distinguishes federal self-rule from revocable administrative delegation.
- **B:** Incorrect. A federation normally forms one constitutional order; secession is not an essential feature of federalism.
- **C:** Incorrect. Federalism tests protected regional competence, not whether the Union lacks national coordinating capacity.
- **D:** Incorrect. India has an integrated judiciary, yet courts still enforce the federal allocation under one supreme Constitution.

Examiner trap: Do not substitute a textbook institutional form for the controlling test of constitutionally protected divided authority.

Q2. With reference to Articles 1 and 3, which statement is most accurate?

A. Every alteration of a State boundary requires that State legislature's consent. B. India is a Union of States, and Parliament may reorganise States after seeking the affected State legislature's views. C. Article 3 gives States a constitutional right to secede after consultation. D. A law under Article 3 must always satisfy the special amendment procedure in Article 368.

Answer: B.

- **A:** Incorrect. The President must refer the proposal for views, but the affected legislature's consent does not bind Parliament.
- **B:** Correct. The Union is not a compact with secession, while territorial change follows the consultative Article 3 process.
- **C:** Incorrect. Article 1 and the constitutional design reject a unilateral State right to leave the Union.
- **D:** Incorrect. Article 4 states that supplemental territorial provisions under Articles 2 and 3 are not Article 368 amendments.

Examiner trap: State consultation under Article 3 is mandatory as a step, but State approval is not a constitutional veto.

Q3. Which statement about the Government of India Act, 1935 is correct?

A. Its All-India Federation began operating immediately in 1937. B. It abolished provincial autonomy and restored dyarchy in every provincial subject. C. It proposed an All-India Federation, introduced provincial autonomy and used a three-List distribution, but the federation did not operate. D. It vested residuary power permanently in elected provincial legislatures.

Answer: C.

- **A:** Incorrect. The accession condition for the princely States was not fulfilled, so the proposed federal centre never commenced.
- **B:** Incorrect. The Act replaced provincial dyarchy with provincial autonomy, although safeguards and gubernatorial powers remained extensive.
- **C:** Correct. Those features made the Act an important antecedent without turning its uncommenced federation into historical fact.
- **D:** Incorrect. Residuary authority under the 1935 scheme was associated with the Governor-General, not the elected provinces.

Examiner trap: Differentiate 'provided for a federation' from 'brought the federation into operation'.

Q4. Which combination most directly secures a classical federal distribution in India?

A. Single citizenship, All-India Services and emergency powers B. Governor appointment, integrated audit and Article 3 C. Parliamentary government, Fundamental Duties and universal franchise D. A written supreme Constitution, divided legislative fields, selective rigidity and independent judicial review

Answer: D.

- **A:** Incorrect. These are principally integrating or centralising features rather than the safeguards of divided competence.
- **B:** Incorrect. The group illustrates Union influence and territorial flexibility, not the core federal protection package.
- **C:** Incorrect. These are important constitutional features but do not by themselves establish a federal allocation.
- **D:** Correct. Textual allocation, supremacy, entrenchment and an umpire make regional competence legally durable.

Examiner trap: A feature may be democratic or constitutional without being specifically federal.

Q5. Which statement about Rajya Sabha is correct?

A. It represents States in Parliament, but its seats are not distributed equally among all States. B. Every State has the same number of Rajya Sabha members. C. Only State legislatures may initiate constitutional amendments affecting federal provisions. D. Rajya Sabha alone can enact a law altering State boundaries.

Answer: A.

- **A:** Correct. The Fourth Schedule differentiates State representation broadly by population while retaining a federal chamber.
- **B:** Incorrect. Equal State representation is a feature of some federations, not the Indian Council of States.
- **C:** Incorrect. Constitutional amendment Bills begin in Parliament; States participate only through ratification where Article 368 requires it.
- **D:** Incorrect. Parliament legislates under Article 3 through the ordinary bicameral process, not Rajya Sabha acting alone.

Examiner trap: State representation and equal State representation are different propositions.

Q6. Residuary legislative power under the Indian Constitution primarily belongs to:

A. State legislatures through State List Entry 1. B. Parliament under Article 248 read with Union List Entry 97. C. The Inter-State Council under Article 263. D. The Supreme Court through Article 131.

Answer: B.

- **A:** Incorrect. State List Entry 1 concerns public order and does not supply a general residuary competence.
- **B:** Correct. Article 248 and Entry 97 allocate unenumerated legislative matters and residuary taxation to Parliament, subject to later GST design.
- **C:** Incorrect. The Inter-State Council is a consultative mechanism and has no independent legislative field.
- **D:** Incorrect. Article 131 grants original judicial jurisdiction over specified disputes, not lawmaking power.

Examiner trap: Do not import the American allocation of residue to constituent units into the Indian scheme.

Q7. Article 246A is best understood as:

A. a new entry added to the Concurrent List. B. a power allowing only Parliament to legislate on all GST supplies. C. a special constitutional grant of simultaneous GST competence, with a distinct rule for inter-State supplies. D. a provision making GST Council recommendations automatically enforceable.

Answer: C.

- **A:** Incorrect. Article 246A is a standalone constitutional competence provision rather than a Seventh Schedule entry.
- **B:** Incorrect. State legislatures also possess GST competence, while Parliament has the specified exclusive inter-State role.
- **C:** Correct. The provision creates shared competence and must be read with Articles 269A and 279A.
- **D:** Incorrect. Legislative competence and the legal effect of Council recommendations are separate questions.

Examiner trap: Special concurrent competence under Article 246A is not the same as placing GST in List III.

Q8. Which statement correctly describes Article 254?

A. It resolves every constitutional disagreement between the Union and a State. B. It always invalidates a State law once Parliament legislates on any subject. C. Presidential assent makes a State law permanently immune from later parliamentary law. D. It principally governs repugnancy on Concurrent subjects, with a State-specific assent exception that Parliament may later override.

Answer: D.

- **A:** Incorrect. Many disputes concern competence, executive power or constitutional rights and never enter Article 254.
- **B:** Incorrect. Parliamentary priority depends on the constitutional field and an actual repugnancy, not mere legislative activity.
- **C:** Incorrect. Article 254(2) preserves local operation after assent but expressly leaves later parliamentary override possible.
- **D:** Correct. The provision supplies a priority rule for irreconcilable Concurrent-field conflict and a qualified State-law exception.

Examiner trap: Repugnancy is narrower than overlap: first identify the field and attempt harmonious operation.

Q9. Parliament's power under Article 249 is activated by:

A. a Rajya Sabha resolution supported by two-thirds of members present and voting that national interest requires parliamentary legislation. B. a simple majority resolution of Lok Sabha declaring any subject important. C. identical resolutions of every State legislature. D. a declaration by the Finance Commission.

Answer: A.

- **A:** Correct. The Council of States supplies the special federal trigger and the resolution operates for a limited renewable period.
- **B:** Incorrect. Article 249 deliberately assigns the triggering role to Rajya Sabha and prescribes a special present-and-voting threshold.
- **C:** Incorrect. State resolutions belong to Article 252, and even there two or more States can initiate the route.
- **D:** Incorrect. The Finance Commission recommends fiscal distribution and has no Article 249 legislative trigger.

Examiner trap: Article 249 is the national-interest route through Rajya Sabha, not a general Lok Sabha override.

Q10. Which proposition about Article 250 is correct?

A. It operates whenever President's Rule exists in any State. B. It permits Parliament to legislate on State subjects while a National Emergency is in operation, with the law continuing for six months after the Emergency ends. C. It requires prior resolutions from two State legislatures. D. It permanently transfers the subject from List II to List I.

Answer: B.

- **A:** Incorrect. President's Rule is governed by Articles 356-357; Article 250 is tied to Article 352 National Emergency.
- **B:** Correct. The power and the six-month survival rule are temporary consequences of an operating National Emergency.
- **C:** Incorrect. State initiative is the defining feature of Article 252, not Article 250.
- **D:** Incorrect. The constitutional List remains unchanged after the temporary parliamentary law ceases to have effect.

Examiner trap: Match the emergency correctly: Article 250 follows Article 352, not every proclamation in Part XVIII.

Q11. A law made by Parliament under Article 252:

A. automatically applies to every State from enactment. B. may be repealed independently by each requesting State legislature. C. applies to requesting or later-adopting States, while Parliament retains amendment and repeal power. D. requires a prior National Emergency.

Answer: C.

- **A:** Incorrect. The law initially binds the States whose legislatures requested parliamentary action.
- **B:** Incorrect. Once enacted under Article 252, amendment or repeal belongs to Parliament rather than an individual participating State.
- **C:** Correct. Other States may adopt the parliamentary law later, preserving a consent-based expansion mechanism.
- **D:** Incorrect. The route depends on State resolutions, not an Article 352 proclamation.

Examiner trap: State consent initiates and expands Article 252, but it does not leave unilateral State repeal power.

Q12. Article 253 enables Parliament to:

A. abolish judicial review whenever an international agreement is signed. B. alter a State boundary without following Article 3. C. legislate only after every affected State grants consent. D. implement treaties, agreements, conventions or international decisions even when legislation touches a State subject.

Answer: D.

- **A:** Incorrect. Treaty implementation remains subject to Fundamental Rights, judicial review and other constitutional limitations.
- **B:** Incorrect. Territorial reorganisation continues to be governed by Articles 2-4.
- **C:** Incorrect. Article 253 does not textually require State consent before Parliament legislates for treaty implementation.
- **D:** Correct. The provision supplies a national implementation power capable of reaching matters otherwise within List II.

Examiner trap: Article 253 widens legislative reach for implementation; it does not suspend the Constitution.

Q13. Articles 256 and 257 are most accurately described as:

A. text-bounded Union coordination and direction powers concerning compliance and non-impediment. B. a general transfer of all State executive power to the Union. C. judicial provisions authorising the Supreme Court to issue advisory opinions. D. fiscal provisions distributing the divisible pool.

Answer: A.

- **A:** Correct. They connect State administration to applicable Union law and protect Union executive power from obstruction.
- **B:** Incorrect. States retain executive authority; directions must rest on the constitutional purposes and fields specified.
- **C:** Incorrect. Supreme Court advisory jurisdiction is found in Article 143, not Articles 256-257.
- **D:** Incorrect. Tax distribution is addressed principally in Part XII, including Article 270.

Examiner trap: A constitutional direction power is not a standing licence for central administration of every State subject.

Q14. Which statement about Article 263 is correct?

A. It automatically creates a permanent court for all inter-State disputes. B. It enables the President to establish a council for inquiry, discussion and recommendation on intergovernmental questions. C. It makes every council recommendation binding on Parliament and States. D. It concerns only the distribution of tax revenues.

Answer: B.

- **A:** Incorrect. Article 263 is enabling and consultative; adjudicatory routes arise from other constitutional or statutory provisions.
- **B:** Correct. The provision can support investigation, discussion and recommendations to improve coordination.
- **C:** Incorrect. The Inter-State Council's recommendations do not acquire binding legislative force merely through Article 263.
- **D:** Incorrect. Fiscal distribution is centred on provisions such as Articles 270 and 280.

Examiner trap: Consultation, adjudication and legislation are distinct functions even when all address intergovernmental conflict.

Q15. Which constitutional statement about All-India Services is correct?

A. They can be created by an ordinary executive order of the Union Cabinet. B. Every State legislature must pass an identical law before creation. C. Article 312 requires a Rajya Sabha national-interest resolution by two-thirds of members present and voting before Parliament creates a new service. D. Their officers are accountable only to the Union while serving in State cadres.

Answer: C.

- **A:** Incorrect. A new All-India Service requires the Article 312 parliamentary route, not executive instruction alone.
- **B:** Incorrect. The constitutional trigger is a special Rajya Sabha resolution rather than identical State statutes.
- **C:** Correct. The Council of States authorises Parliament to legislate, combining national administration with a federal safeguard.
- **D:** Incorrect. Service in State cadres creates responsibilities within State administration alongside Union-level cadre arrangements.

Examiner trap: Article 312 uses Rajya Sabha as a federal gate; it does not require unanimous State consent.

Q16. Which relationship between Articles 355 and 356 is most accurate?

A. Every Article 355 concern automatically compels President's Rule. B. Article 355 itself transfers State legislative power to Parliament. C. Article 356 is immune from judicial review because Article 355 imposes a Union duty. D. Article 355 states a Union duty, while Article 356 supplies an exceptional, separately conditioned and reviewable remedy.

Answer: D.

- **A:** Incorrect. Internal difficulty or a protection duty does not by itself prove constitutional government has become impossible.
- **B:** Incorrect. Parliamentary exercise of State legislative power arises through Articles 356-357 after a valid proclamation.
- **C:** Incorrect. *S.R. Bommai* confirms review of the proclamation's supporting material and constitutional purpose.
- **D:** Correct. Duty and remedy have different legal functions, thresholds and consequences.

Examiner trap: Never use Article 355 as a shortcut around the distinct Article 356 threshold.

Q17. Which amendment proposition best protects the federal compact?

A. Specified federal changes under Article 368 require a parliamentary special majority and ratification by at least half of State legislatures. B. Every constitutional amendment requires ratification by all States. C. State legislatures may introduce Article 368 amendment Bills. D. A Governor's assent is required for a State ratification resolution.

Answer: A.

- **A:** Correct. The proviso to Article 368 gives States a limited but real role over enumerated federal subjects.
- **B:** Incorrect. Most amendments do not require State ratification, and the federal category requires at least half rather than unanimity.
- **C:** Incorrect. Amendment Bills may be introduced only in either House of Parliament.
- **D:** Incorrect. State ratification occurs by legislative resolution and has no separate gubernatorial-assent stage.

Examiner trap: Selective rigidity protects named federal matters; it is not a universal State veto over amendment.

Q18. What is the safest use of *State of West Bengal v. Union of India* (1963)?

A. It recognised a unilateral State right to secede from India. B. It rejected sovereign-compact immunity of States from constitutionally valid Union power. C. It held that State legislative fields are merely administrative delegations. D. It made Article 3 dependent on unanimous State consent.

Answer: B.

- **A:** Incorrect. The Constitution creates an indestructible Union without a unilateral State secession right.
- **B:** Correct. The case supports the strong-Union proposition that States are not sovereign entities outside the constitutional order.
- **C:** Incorrect. The ruling did not erase the Seventh Schedule or reduce State competence to ordinary Union delegation.
- **D:** Incorrect. Article 3 requires consultation through the constitutional process, not unanimity.

Examiner trap: The case denies sovereign State immunity; it does not deny constitutional federalism.

Q19. Which proposition follows most directly from *S.R. Bommai v. Union of India* (1994)?

A. Article 356 can be invoked only after a constitutional amendment. B. States possess sovereignty equal to the Union in international law. C. Federalism is a basic feature, Article 356 material is reviewable and disputed majority ordinarily belongs on the Assembly floor. D. The Governor's report conclusively binds Parliament and courts.

Answer: C.

- **A:** Incorrect. Article 356 remains an operative constitutional power subject to its own procedure and judicial review.
- **B:** Incorrect. Indian States exercise constitutional autonomy within one sovereign Union and do not conduct independent foreign relations.
- **C:** Correct. The judgment joins basic-structure protection with practical controls on partisan displacement of State government.
- **D:** Incorrect. Courts may examine relevant material, and a Governor's assessment cannot replace a proper floor test.

Examiner trap: Bommai constitutionalises restraint; it neither abolishes Article 356 nor creates co-equal sovereign States.

Q20. What does *Kuldip Nayar v. Union of India* (2006) most safely establish for this topic?

A. Rajya Sabha has ceased to represent States. B. Every federation must require equal seats and State domicile. C. Open ballot and residence rules are irrelevant to constitutional review. D. A State residence requirement for Rajya Sabha candidature is not indispensable to India's distinctive federal design.

Answer: D.

- **A:** Incorrect. Rajya Sabha remains constitutionally designated as the Council of States.
- **B:** Incorrect. Classical models inform comparison but do not rigidly determine every Indian federal institution.
- **C:** Incorrect. Institutional rules remain reviewable; the case assessed their compatibility rather than declaring them legally irrelevant.
- **D:** Correct. The Court rejected the claim that domicile was an essential federal requirement in the Indian constitutional arrangement.

Examiner trap: Use *Kuldip Nayar* to qualify textbook federalism, not to erase Rajya Sabha's federal role.

Q21. After Union of India v. Mohit Minerals (2022), GST Council recommendations are:

A. persuasive products of collaborative dialogue, not binding commands to the Union or State legislatures. B. binding only on States and optional for Parliament. C. equivalent to constitutional amendments once adopted by vote. D. unenforceable suggestions with no constitutional significance.

Answer: A.

- **A:** Correct. The judgment preserves legislative autonomy while recognising the Council's constitutional and practical importance.
- **B:** Incorrect. The Court did not create an asymmetric rule binding States alone.
- **C:** Incorrect. Article 279A recommendations do not bypass legislation or the Article 368 amendment procedure.
- **D:** Incorrect. Non-binding recommendations can still structure harmonisation, political commitment and cooperative bargaining.

Examiner trap: Non-binding does not mean meaningless; influential consultation and legal compulsion are different.

Q22. Which statement best describes the GST Council's federal design?

A. Every State has a constitutional veto over each recommendation. B. Weighted voting requires both Union and collective State participation for the prescribed majority. C. The Union's vote alone satisfies the constitutional decision threshold. D. The Council replaces Parliament and State legislatures as the taxing authority.

Answer: B.

- **A:** Incorrect. Individual States participate, but Article 279A does not grant each one a unilateral veto.
- **B:** Correct. The weight structure makes shared participation necessary and encourages negotiated outcomes.
- **C:** Incorrect. The Union's one-third weight cannot by itself reach the three-fourths decision threshold.
- **D:** Incorrect. Legislative competence remains with Parliament and State legislatures under Article 246A.

Examiner trap: Council voting coordinates governments; it does not transfer legislative sovereignty to the Council.

Q23. The Finance Commission under Article 280 is:

A. a permanent chamber representing States equally. B. an executive council whose directions bind State budgets. C. a periodic constitutional body recommending tax distribution and grants. D. the adjudicator of all disputes under Article 131.

Answer: C.

- **A:** Incorrect. Rajya Sabha is the continuing parliamentary chamber; the Finance Commission is periodically constituted.
- **B:** Incorrect. It recommends fiscal arrangements and does not administer every State budget.
- **C:** Correct. Article 280 provides the constitutional mechanism for periodic recommendations on devolution and specified grants.
- **D:** Incorrect. Article 131 original jurisdiction belongs to the Supreme Court.

Examiner trap: Do not confuse recommendatory fiscal equalisation with binding executive control.

Q24. Which pairing is correct?

A. Vertical imbalance - unequal fiscal capacity among States B. Horizontal imbalance - mismatch between Union revenue and State expenditure responsibilities C. Vertical imbalance - only differences in population size D. Horizontal imbalance - differences in fiscal capacity and expenditure need among States

Answer: D.

- **A:** Incorrect. Differences among States define the horizontal dimension rather than the vertical Union-State mismatch.
- **B:** Incorrect. Revenue-expenditure mismatch between governmental levels is vertical imbalance.
- **C:** Incorrect. Population may influence need, but vertical imbalance concerns assignment across levels of government.

- **D:** Correct. Horizontal imbalance compares States' ability to raise revenue and meet differing needs.

Examiner trap: Vertical compares levels; horizontal compares constituent units.

Q25. Which distinction between the Fifth and Sixth Schedules is accurate?

A. The Sixth Schedule creates autonomous district and regional councils in specified tribal areas, while the Fifth Schedule uses a different Scheduled Area and Tribes Advisory Council framework. B. Both Schedules apply uniformly to every tribal area in India. C. The Fifth Schedule gives each Scheduled Area a separate State constitution. D. The Sixth Schedule abolishes the authority of the concerned State legislature.

Answer: A.

- **A:** Correct. The two schedules embody different institutional techniques and different territorial coverage.
- **B:** Incorrect. Their application is constitutionally specified and neither is a universal tribal-governance code.
- **C:** Incorrect. Fifth Schedule protection operates within the Constitution of India and does not create separate constitutions.
- **D:** Incorrect. Autonomous councils possess defined powers without eliminating the State's constitutional role.

Examiner trap: Asymmetry requires clause-by-clause precision; Fifth and Sixth Schedule institutions are not interchangeable.

Q26. Article 239AA illustrates asymmetrical federalism because it:

A. makes Delhi a full State with authority over every State List subject. B. creates an elected legislature and ministry for NCT Delhi while reserving public order, police and land outside its ordinary field. C. gives the Lieutenant Governor an unrestricted personal veto over all administration. D. removes Parliament's legislative competence concerning the National Capital Territory.

Answer: B.

- **A:** Incorrect. Delhi remains a Union Territory with a special constitutional arrangement rather than full State status.
- **B:** Correct. The design combines representative government with constitutionally excluded subjects and continuing parliamentary authority.
- **C:** Incorrect. The Supreme Court has rejected routine displacement of the elected government's role by the Lieutenant Governor.
- **D:** Incorrect. Article 239AA preserves substantial parliamentary competence for the National Capital Territory.

Examiner trap: Delhi is neither an ordinary Union Territory nor a full State; answer through its specific text.

Q27. Which statement about Articles 371 to 371J is correct?

A. They create a single identical package of powers for every State. B. They grant separate national citizenship to their beneficiary populations. C. They contain differentiated State-specific arrangements responding to distinct historical and regional needs. D. They operate only during a National Emergency.

Answer: C.

- **A:** Incorrect. The clauses differ substantially in subject, institution and territorial application.
- **B:** Incorrect. India retains single citizenship; special governance arrangements do not create separate nationality.
- **C:** Correct. The family exemplifies asymmetrical accommodation within a common constitutional order.
- **D:** Incorrect. These are continuing constitutional provisions rather than emergency powers.

Examiner trap: Never compress the Article 371 family into one uniform privilege.

Q28. Which statement most accurately reflects the 11 December 2023 Article 370 judgment?

A. It restored the former Article 370 arrangement and the separate J&K Constitution. B. It fixed a legally binding calendar date for restoration of J&K statehood. C. It held that Ladakh could not remain a Union Territory. D. It upheld the 2019 constitutional changes, accepted Ladakh's Union Territory status and recorded an assurance of J&K statehood restoration without deciding the reorganisation issue finally.

Answer: D.

- **A:** Incorrect. The Court upheld the application of the Constitution of India without the former special arrangement.
- **B:** Incorrect. It directed Assembly elections by a date but did not prescribe a date for restoration of statehood.
- **C:** Incorrect. The Court accepted the Union Territory status of Ladakh in the operative disposition.
- **D:** Correct. This formulation preserves the judgment's holding, the assurance and the issue the Court did not finally determine.

Examiner trap: Separate the Article 370 holding, Ladakh's status, the election direction and the un-fixed statehood question.

Q29. What principle is most closely associated with the 10 November 2023 Punjab Governor judgment?

A. A Governor cannot indefinitely obstruct the normal legislative process and must act within the constitutional scheme. B. A Governor may create an unlimited pocket veto over every State Bill. C. The Speaker's conduct is controlled personally by the Governor. D. Every Bill automatically becomes law if the Governor does not act within one month.

Answer: A.

- **A:** Correct. The Court stressed constitutional action and rejected use of an unelected office to thwart ordinary lawmaking.
- **B:** Incorrect. Indefinite inaction is inconsistent with the constitutional role and representative government.
- **C:** Incorrect. The judgment respected the Speaker's procedural domain in the circumstances before it.
- **D:** Incorrect. The Court did not invent an automatic one-month deemed-assent rule.

Examiner trap: Reject both extremes: indefinite obstruction and invented automatic assent.

Q30. Which pairing best distinguishes territorial and functional federalism?

A. Territorial federalism concerns only municipal boundaries; functional federalism concerns secession. B. Territorial federalism allocates authority by level and territory; functional federalism coordinates governments around cross-cutting tasks. C. Territorial federalism is constitutional; functional federalism abolishes the Constitution. D. Functional federalism makes every intergovernmental body a sovereign tier.

Answer: B.

- **A:** Incorrect. Territorial federalism includes the Union-State constitutional map, not merely local boundaries.
- **B:** Correct. The distinction separates jurisdictional allocation from collaborative performance of interdependent functions.
- **C:** Incorrect. Functional cooperation operates through constitutional and statutory authority rather than outside it.
- **D:** Incorrect. A council or implementation network does not become a constituent sovereign government.

Examiner trap: A function may cross jurisdictions without dissolving the underlying territorial allocation.

Q31. Which statement about local governments in Indian federalism is correct?

A. The Seventy-third and Seventy-fourth Amendments made local bodies sovereign constituent units equal to States. B. Parliament directly assigns every local function throughout India. C. Local bodies are constitutionally recognised, but Articles 243G and 243W depend on State legislation for devolution of powers. D. Municipalities may invalidate State laws within their territory.

Answer: C.

- **A:** Incorrect. Constitutional recognition created a third level of governance, not a third co-sovereign federal order.
- **B:** Incorrect. State legislatures occupy the central constitutional role in endowing panchayats and municipalities with powers.
- **C:** Correct. The amendments secure institutional status while leaving the actual devolution architecture substantially State-mediated.
- **D:** Incorrect. Local bodies exercise conferred powers and do not possess constitutional supremacy over State legislation.

Examiner trap: Use 'third tier of governance' without claiming a third constituent sovereignty.

Q32. Which conclusion is most defensible about Indian federalism?

A. India is purely unitary because Parliament can reorganise States. B. India is purely federal because State List competence exists. C. One scholarly label conclusively settles the constitutional classification. D. India is constitutionally federal, Union-weighted and asymmetrical; cooperative, competitive and bargaining labels describe changing modes of operation.

Answer: D.

- **A:** Incorrect. Article 3 is a centralising feature, but it coexists with protected legislative and executive State competence.
- **B:** Incorrect. State competence establishes a federal core but does not erase residuary, emergency and coordinating Union powers.
- **C:** Incorrect. Scholarly descriptions illuminate dimensions and must be qualified against text, doctrine and practice.
- **D:** Correct. The formulation integrates legal structure, asymmetry and changing intergovernmental behaviour without an absolute label.

Examiner trap: A high-scoring verdict weighs structure, tilt and operation instead of choosing an unqualified binary label.

PYQS AND ANSWER PRACTICE

Audited PYQ set and ownership discipline

- The ten questions below preserve the wording held in the repository's official-paper routing ledgers.
- Direct Topic 12 routes are distinguished from shared or supporting routes whose full machinery belongs to Topics 13, 14 or 30.
- The locally held final official keys do not cover the 2021 and 2023 objective questions; their answer letters are withheld.

PYQ 1 - UPSC GS-II 2020, Q3 - direct

Question: How far do you think cooperation, competition and confrontation have shaped the nature of federation in India?

10 marks | 150 words

Model solution

Indian federalism is constitutionally divided but politically dynamic; cooperation, competition and confrontation operate simultaneously rather than in separate eras.

Cooperation appears through GST deliberation, Finance Commission consultation, disaster coordination and shared programmes: the Union supplies scale while States contribute implementation and local knowledge. **Competition** appears in investment, welfare innovation and comparative performance, although unequal capacity can widen divergence. **Confrontation** arises over Governor conduct, CBI consent, taxes, borrowing and river disputes.

These tensions need not destroy the federation when Parliament, councils, courts and elections channel them. *S.R. Bommai* protects a basic federal floor, while *Mohit Minerals* preserves legislative autonomy within GST dialogue.

Thus cooperation is the institutional necessity, competition an incentive mechanism and confrontation a test of whether bargaining remains constitutional.

Why this earns marks

It answers 'how far', gives a mechanism and evidence for all three modes, and reaches a graded hierarchy.

How to improve this answer

Use one illustration per mode and reserve the conclusion for the relationship among them.

PYQ 2 - UPSC GS-II 2021, Q11 - shared route

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India.

15 marks | 250 words

Model solution

Police and public order are State subjects, while the CBI exercises police powers under the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent for ordinary exercise of those powers within a State.

General consent facilitates routine investigation; withdrawal ordinarily requires case-specific consent for fresh action. This protects territorial police autonomy and prevents an unrestricted parallel central police jurisdiction.

The power is not absolute. The Supreme Court under Article 32 and High Courts under Article 226 may direct a CBI investigation without State consent to protect rights and the integrity of justice. Withdrawal also does not automatically invalidate every investigation lawfully begun earlier; effect depends on the consent terms and facts.

In *State of West Bengal v. Union of India* (10 July 2024), the Supreme Court rejected the Union's preliminary maintainability objection to West Bengal's Article 131 suit. The Court did not finally decide the merits of every post-withdrawal investigation.

Federal balance therefore requires State consent as the statutory rule, constitutional-court power as an exceptional safeguard and clearer legislative protocols for accountability. Consent protects autonomy; it is not immunity from judicially ordered investigation.

Why this earns marks

It separates the statutory rule, constitutional exception and limited 2024 holding.

How to improve this answer

Do not turn the maintainability ruling into a final merits decision on every CBI case.

PYQ 3 - UPSC GS-II 2022, Q13 - shared route

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment.

15 marks | 250 words

Model solution

The proposition identifies a tendency but is too absolute. Federal preferences often follow institutional position and electoral incentives more than permanent ideology.

A national party controlling the Union may favour uniform policy, national schemes, central agencies and common standards. It can rely on residuary power, conditional finance, All-India Services and the constitutional routes into State subjects. Regional parties draw legitimacy from State-specific identities and commonly demand larger fiscal space, fewer scheme conditions, neutral Governors and regular intergovernmental consultation.

Yet the relationship reverses. National parties governing opposition States invoke autonomy; regional parties may centralise within their own States; national coalitions accommodate regional partners; and regional parties participating at the Union may support uniform policy. GST shows parties pooling tax authority despite State-centred incentives.

The Constitution contains both impulses: List II and federal ratification protect autonomy, whereas Articles 3, 248 and emergency provisions strengthen the Union. *S.R. Bommai* prevents the party controlling the Union from erasing the federal basic structure.

Therefore party type matters, but control of office, coalition arithmetic and issue-specific interests explain behaviour more reliably than the national-regional label alone.

Why this earns marks

It comments through a qualified causal thesis, evidence, reversals and constitutional limits.

How to improve this answer

Organise the answer as incentive, evidence and counter-evidence rather than listing parties.

PYQ 4 - UPSC Prelims 2021, Q86 - direct

Question: Which one of the following in Indian polity is an essential feature that indicates that it is federal in character?

- A. The independence of judiciary is safeguarded B. The Union Legislature has elected representatives from constituent units C. The Union Cabinet can have elected representatives from regional parties D. Fundamental Rights are enforceable by Courts of Law

Objective | local official key unavailable

Model solution

Answer withheld pending official UPSC key.

Concept route: A federal allocation requires an impartial constitutional umpire capable of adjudicating competence. Elected representatives from territorial units, regional-party ministers and enforceable rights can exist without a constitutionally divided federation. The question therefore tests the distinction between a specifically federal safeguard and more general democratic or constitutional features.

Why this earns marks

It preserves key discipline while explaining the exact conceptual discriminator.

How to improve this answer

Do not print an inferred answer letter when the locally held official key is unavailable.

PYQ 5 - UPSC Prelims 2023, Q32 - direct

Question: Consider the following statements:

1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day administration.
2. The Prisons Act, 1894 kept the subject of prisons under the control of Provincial Governments.

Which one of the following is correct in respect of the above statements?

- A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I B. Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I C. Statement-I is correct, but Statement-II is incorrect D. Statement-I is incorrect, but Statement-II is correct

Objective | local official key unavailable

Model solution

Answer withheld pending official UPSC key.

Statement audit: Prison administration is presently a State responsibility under Entry 4 of List II, and States regulate day-to-day administration. The colonial Prisons Act is historically relevant, but the current constitutional allocation rests on the Seventh Schedule. The explanation test therefore requires separating historical statutory administration from the present constitutional reason.

Why this earns marks

It independently tests both statements and the causal link without promoting an unofficial key.

How to improve this answer

In assertion-reason questions, factual truth and explanatory relationship are separate steps.

PYQ 6 - UPSC GS-II 2020, Q11 - supporting; detailed machinery belongs to Topic 13

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts.

15 marks | 250 words

Model solution

India's holding-together federation gives the Union coordinating capacity for externalities that cross State boundaries, but central action must remain tied to legislative competence and consultation.

During COVID-19, national directions under the Disaster Management Act operated alongside State public-health administration and the Epidemic Diseases Act. The arrangement showed Union scale depending on State implementation. The 2020 Farm Acts relied significantly on Concurrent List Entry 33 concerning trade in foodstuffs but affected agriculture and markets associated with State List Entries 14 and 28. Their enactment without adequate political consensus produced a competence-and-legitimacy dispute; repeal in 2021 demonstrated political federal correction.

The wider centralising design includes Article 248 residue, Articles 249, 250, 252 and 253, directions and emergency powers. Counterweights include List II autonomy, Rajya Sabha, judicial review and State electoral legitimacy.

Central capacity can protect unity where action is necessary and connected to an enumerated field. It becomes legitimate federal coordination only when competence is clear, measures are proportionate and States participate before implementation.

Why this earns marks

It applies the constitutional balance to every named law and distinguishes coordination from unlimited centralisation.

How to improve this answer

Keep the policy merits subordinate to the question's legislative-competence and consultation demand.

PYQ 7 - UPSC GS-II 2023, Q13 - supporting; Article 356 detail belongs to Topic 14

Question: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since the mid-1990s.

15 marks | 250 words

Model solution

The reduced frequency of Article 356 reflects the conversion of President's Rule from a broad political weapon into a reviewable exceptional remedy.

Legally, *S.R. Bommai* (1994) made federalism a basic feature, subjected proclamation material to judicial review, preferred an Assembly floor test for disputed majority and permitted restoration after unconstitutional dismissal. Later floor-test decisions increased the legal and reputational cost of partisan action. Article 355's duty cannot itself prove the Article 356 threshold that government cannot be carried on according to the Constitution.

Politically, coalition governments and strong regional parties increased State bargaining power. A competitive party system made arbitrary dismissal electorally costly, while media, opposition and judicial scrutiny strengthened accountability. Sarkaria and Punchhi recommendations reinforced the norm of warning, alternatives and last resort.

Use has not disappeared because genuine constitutional breakdown can still occur. The decline is therefore best explained by judicial discipline interacting with plural party politics, not by repeal or desuetude of Article 356.

Why this earns marks

It answers causation through distinct legal and political mechanisms and retains the exceptional power.

How to improve this answer

Avoid unsupported proclamation counts; the legal-political interaction is sufficient.

PYQ 8 - UPSC GS-II 2023, Q15 - supporting; GST detail belongs to Topic 30

Question: Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism?

15 marks | 250 words

Model solution

The One Hundred and First Amendment restructured fiscal federalism by creating a shared indirect-tax field instead of assigning the whole field exclusively to one level.

Article 246A gives Parliament and State legislatures simultaneous GST competence, with a distinct parliamentary role for inter-State supplies. Article 269A provides the inter-State levy and apportionment bridge. Article 279A creates the GST Council, where weighted voting requires participation by both Union and States. The reform reduced several internal tax barriers and supported a common market.

Its accommodative character lies in pooled pre-existing authority, institutional State participation and a constitutional expectation of negotiated harmonisation. Limits remain: States lost some unilateral rate flexibility, fiscal capacity is unequal, and compensation and base exclusions can generate conflict. In *Mohit Minerals* (2022), the Supreme Court held Council recommendations non-binding, preserving legislative authority within collaborative dialogue.

The Amendment therefore reflects accommodative federalism to a substantial but conditional extent. Its constitutional design requires bargaining; its success depends on transparent reasons, trust and fair adjustment rather than legal compulsion alone.

Why this earns marks

It explains the three-Article design and evaluates accommodation through both gains and limits.

How to improve this answer

Do not say the Council binds legislatures after *Mohit Minerals*.

PYQ 9 - UPSC GS-II 2024, Q13 - supporting; full relation machinery belongs to Topic 13

Question: What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism.

15 marks | 250 words

Model solution

Recent Centre-State relations combine rule-based coordination with new sources of mistrust. GST created permanent shared-tax negotiation; Finance Commission transfers remain the principal constitutional devolution route; and NITI Aayog replaced the Planning Commission's plan-allocation role with a consultative platform. At the same time, cesses outside the divisible pool, conditional schemes, borrowing constraints, Governor disputes and central-agency jurisdiction have generated centralisation concerns.

Trust requires process and predictability. The Inter-State Council should meet regularly with published follow-up. States should be consulted early on laws and schemes affecting List II. Transfers, cesses and scheme shares should be transparent and stable. GST disputes need reasoned Council deliberation. Governors should act promptly and

constitutionally, while Article 356 must remain under *Bommai* discipline. Major federal measures deserve Rajya Sabha and committee scrutiny.

India needs a capable Union for common markets, rights and externalities, but capacity earns legitimacy through consultation. Cooperative federalism means institutionalised disagreement and reasoned compromise, not compelled unanimity.

Why this earns marks

It pairs each recent pattern with a trust deficit and an institution-specific remedy.

How to improve this answer

Use only dateable or legally anchored changes and avoid partisan allegations.

PYQ 10 - UPSC GS-II 2025, Q14 - supporting; fiscal detail belongs to Topic 13

Question: Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India?

15 marks | 250 words

Model solution

Centre-State finance has moved from a dual arrangement of constitutional Finance Commission transfers and Planning Commission plan assistance toward a more rule-based but still mixed architecture.

During planned development, discretionary plan grants and centrally sponsored schemes gave the Union substantial influence over State priorities. After the Planning Commission was replaced by NITI Aayog, Finance Commission devolution became more prominent. GST pooled major indirect-tax powers through Articles 246A, 269A and 279A. The official Sixteenth Finance Commission report for 2026-31, submitted on 17 November 2025, recommends retaining the States' 41 per cent vertical share of the divisible pool.

Reforms improved formula-based transfers and common-market coordination. *Mohit Minerals* confirms that Council recommendations do not erase legislative autonomy. Yet vertical imbalance persists: States deliver major public services while the Union controls buoyant bases. Cesses and surcharges, conditional schemes, unequal tax capacity and Article 293 borrowing conditions can narrow effective State choice.

The impact is significant but incomplete. India has moved from plan discretion toward constitutionalised interdependence, not fiscal independence. Predictable schemes, transparent cesses, stronger State revenue capacity and regular consultation remain necessary.

Why this earns marks

It gives chronology, constitutional mechanisms, a dated official recommendation and a qualified extent verdict.

How to improve this answer

Keep horizontal formula weights out unless the exact report and year are cited.

Six original Mains questions with full model answers

Original Q1 - 10 marks | 150 words

Question: Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union.

Model solution

Federalism constitutionally protects governments at two levels; administrative decentralisation grants powers that a superior government may ordinarily withdraw.

India meets the federal test through a supreme written Constitution, dual polity, Seventh Schedule distribution, selective State ratification, judicial review and Rajya Sabha. States legislate directly on police, public health and agriculture; this authority is not delegated by the Union.

The Union is stronger through Article 248 residue, Articles 249, 250, 252 and 253, Article 3, integrated services and emergency powers. These features qualify rather than erase federalism because they are constitutionally

enumerated, conditioned and reviewable. *S.R. Bommai* protects federalism as Basic Structure.

India is therefore a holding-together, Union-weighted federation. The decisive test is protected State competence, not equal institutional weight.

Answer-prose count: 120 words.

Why this earns marks

The answer defines the axis, proves autonomy and Union tilt, and closes with a case-backed classification.

How to improve this answer

In ten marks, use one federal cluster and one centralising cluster rather than listing every feature.

Original Q2 - 10 marks | 150 words

Question: How do Articles 1 and 3 combine national unity with territorial adaptability?

Model solution

Article 1 establishes India as a Union of States: the constitutional order is not a treaty among sovereign units and contains no unilateral right of secession. Article 3 gives Parliament power to form new States and alter areas, boundaries or names.

The process nevertheless contains consultation. A Bill requires the President's recommendation, and the President refers it to the affected State legislature for views within the specified period. Those views are not binding. Article 4 permits supplemental changes and excludes such a law from Article 368 merely because schedules and representation are adjusted.

This flexibility enabled linguistic and later territorial reorganisation without repeatedly re-founding the Union. Its democratic weakness is that an affected State lacks consent power. Parliament should therefore use prior consultation, reasoned criteria and transition safeguards.

Articles 1 and 3 make the Union indestructible but its internal map adaptable.

Answer-prose count: 141 words.

Why this earns marks

It states both unity and procedure, then converts the absence of a veto into a balanced reform point.

How to improve this answer

Do not confuse the State's right to express views with a right to approve the Bill.

Original Q3 - 15 marks | 250 words

Question: Asymmetrical federalism is an instrument of integration, not a departure from equal citizenship. Examine.

Model solution

Asymmetrical federalism means that territorial units possess different constitutional arrangements within one sovereign order. It seeks substantive integration by responding to different histories, identities and governing conditions.

The Fifth Schedule protects Scheduled Areas through a Governor and Tribes Advisory Council framework. The Sixth Schedule creates autonomous district and regional councils in specified tribal areas of Assam, Meghalaya, Tripura and Mizoram. Articles 371 to 371J contain distinct State-specific provisions; they are not one uniform privilege. Article 239AA gives Delhi an elected legislature and ministry while excluding public order, police and land from its ordinary field.

These arrangements can reduce alienation, protect land and customary institutions, and permit metropolitan or border-specific governance. They therefore strengthen the Union by making membership compatible with meaningful difference.

Risks remain. Complexity can obscure accountability; exceptional powers may be under-implemented; and unequal treatment may become politically contested. The post-2019 J&K arrangement also shows that asymmetry can be reduced through constitutional action. The 2023 Article 370 judgment upheld the changes but did not fix a date for

restoration of statehood.

Asymmetry does not create different grades of Indian citizenship. Its legitimacy depends on constitutional purpose, participation, rights and periodic review. Equality requires equal citizenship, not necessarily identical territorial institutions.

Answer-prose count: 202 words.

Why this earns marks

It defines asymmetry, compares mechanisms, gives benefits and risks, and separates citizenship from institutions.

How to improve this answer

Name the precise schedule or article for every example instead of using 'special status' loosely.

Original Q4 - 15 marks | 250 words

Question: Evaluate the role of the judiciary in maintaining the federal balance in India.

Model solution

The judiciary maintains federal balance by interpreting competence, adjudicating legal disputes and preventing exceptional powers from destroying the constitutional allocation.

Under Article 131, the Supreme Court hears specified Union-State and inter-State disputes involving legal rights. In legislative cases, pith and substance identifies a law's true nature, harmonious construction reduces avoidable collision and Article 254 resolves irreconcilable Concurrent-field conflict.

The case trajectory is equally important. *State of West Bengal* rejected sovereign-compact immunity but did not erase State competence. *Kesavananda Bharati* supplied the Basic Structure limitation. *S.R. Bommai* expressly protected federalism, reviewed Article 356 material and preferred Assembly floor testing. *Mohit Minerals* preserved legislative autonomy by treating GST Council recommendations as non-binding. The 2024 West Bengal ruling allowed an Article 131 CBI-consent suit to proceed past preliminary objections without deciding the merits.

Judicial review has limits. Courts cannot replace fiscal bargaining, continuous consultation or political accountability, and excessive judicial management may narrow democratic choice.

The judiciary is therefore a constitutional umpire and minimum-guarantee institution, not the daily manager of federal relations. Its strongest contribution is keeping bargaining within competence, reasons and review.

Answer-prose count: 181 words.

Why this earns marks

It integrates jurisdiction, doctrines and cases while acknowledging institutional limits.

How to improve this answer

Use holdings narrowly and avoid presenting maintainability or advisory observations as final merits rules.

Original Q5 - 20 marks | 250 words

Question: Fiscal federalism in India combines constitutional equalisation with persistent centralising pressure. Critically analyse.

Model solution

Fiscal federalism asks whether each level has the resources to discharge its constitutional responsibilities. India combines tax assignment, devolution, grants and shared GST institutions, but practical autonomy remains uneven.

Articles 268-270 allocate levy, collection and distribution. Articles 275 and 282 provide distinct grant routes. Article 280 creates a periodic Finance Commission to recommend vertical distribution, horizontal allocation and grants. Articles 246A, 269A and 279A constitutionalise shared GST governance. The Sixteenth Finance Commission report for 2026-31, submitted on 17 November 2025, recommends retaining a 41 per cent vertical share for States.

These mechanisms support equalisation, predictable transfers and a common market. *Mohit Minerals* protects legislative autonomy by treating GST Council recommendations as persuasive rather than binding.

Centralising pressure persists. The Union controls several buoyant bases; States bear major health, education and local-service responsibilities. Cesses and surcharges outside the divisible pool, conditional centrally sponsored schemes, unequal tax capacity and Article 293 borrowing conditions can constrain policy choice. GST reduced independent rate space, and compensation disputes exposed dependence.

Reform should improve cess transparency, stabilise scheme shares, strengthen State tax administration, publish reasons in GST deliberations and align borrowing conditions with objective fiscal risk.

India's fiscal system is constitutionally cooperative but materially asymmetric. Equalisation must preserve both national solidarity and sufficient State discretion.

Answer-prose count: 209 words.

Why this earns marks

It distinguishes constitutional design, benefits, centralising pressures and executable reforms before a balanced verdict.

How to improve this answer

Do not use an undated devolution percentage; attach the commission period and report date.

Original Q6 - 20 marks | 250 words

Question: What are the principal challenges to Indian federalism, and how can constitutional trust be rebuilt without weakening legitimate Union capacity?

Model solution

Indian federalism must reconcile a Union capable of national action with States that possess meaningful political, administrative and fiscal autonomy. The present difficulty is often the manner of exercising power rather than the absence of constitutional institutions.

Governor delays and disputed majority assessments can obstruct elected governments. Fiscal dependence grows through cesses, conditional schemes and borrowing limits. GST creates common- market gains but also bargaining over revenue and policy space. Union legislation touching State concerns, central-agency jurisdiction and inter-State water disputes deepen mistrust. Unequal regional representation and weak devolution to local bodies add vertical and territorial tensions.

Reform requires regular Inter-State Council meetings with published follow-up; early State consultation on List II effects; transparent tax, cess and scheme data; predictable transfer and borrowing rules; and reasoned GST Council deliberation. Governors should act promptly and non-partisanly. *S.R. Bommai* floor-test and review principles must govern Article 356. Rajya Sabha and parliamentary committees should scrutinise measures with major federal effects. States, in turn, should devolve functions, funds and staff to local bodies and use inter-State forums constructively.

National defence, rights, macroeconomic stability and cross-border externalities require Union capacity. Constitutional trust is rebuilt when that capacity is exercised through competence, necessity, consultation, reasons and review.

India needs neither automatic centralisation nor reflexive decentralisation, but cooperative strength under a protected federal floor.

Answer-prose count: 218 words.

Why this earns marks

It links each challenge to a mechanism and pairs reform with a necessary national-capacity qualification.

How to improve this answer

Group challenges into political, fiscal, functional and representational clusters before suggesting remedies.